



November 9, 2023

VIA E-MAIL

Mr. Martin H. Laws, AICP
Planning Division Manager
Code Compliance and Public Information Team
Boulder County Community Planning & Permitting Department
mlaws@bouldercounty.org

Response to Request for Information Regarding Cemex Plant Operation

Dear Mr. Laws:

This letter is in response to your request that we received October 10, 2023, a copy of which is attached ("Request"), for information and historical data for the cement plant located at 5314 Ute Highway (Parcel # 120329400011) (the "Cement Plant").

Attachment 1 to this letter is a summary table of annual air emissions, kiln feed rates and clinker production amounts for 1996 to 2007.

The kiln emissions data on Attachment 1 were measured by Continuous Emissions Monitors ("CEMs"). The initial VOC kiln emissions were estimated using emissions factors and later measured by stack testing. Plantwide PM and PM 10 emissions are measured by emission estimates or stack testing.

Air emissions measured by the CEMs were and are regulated by the Colorado Department of Public Health and Environment and are routinely reported to CDPHE as part of our Title V air permit requirements. The regulations do not require us to retain production or emissions records for more than five years. The data presented in the table has been compiled from multiple sources and is believed to be consistent with the reports submitted to CDPHE for the period requested. Data directly obtained from the CEMs or kiln weigh scale for this period are no longer available.

The kiln feed rates are measured by a kiln feed weigh scale and supported by inventory controls. Clinker production amounts are generated mathematically by using a factor to convert kiln feed amounts to clinker production amounts.

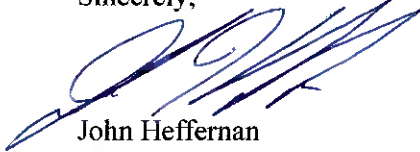
Attachment 2 to this letter is a list of what we believe you are requesting with respect to modifications, alterations or additions to the plant or site, including equipment, during 1996 to 2007.

We look forward to further discussing this information or any questions you may have.

Mr. Martin H. Laws
November 9, 2023
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Nothing in this letter should be taken as a waiver of any rights with respect to any matter.

Sincerely,

A handwritten signature in blue ink, appearing to read "John Heffernan", is written over the word "Sincerely,".

John Heffernan
Cemex



Community Planning & Permitting

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John Heffernan
Vice President Business Development
CEMEX U.S. Operations
10100 Katy Fwy
Suite 300
Houston, Texas 77043

RE: REQUEST FOR INFORMATION

Mr. Heffernan:

Thank you for your response to the Boulder County Community Planning and Permitting Department regarding a complaint stating a non-conforming use is operating at 5314 Ute Highway (Parcel # 120329400011). Our Department has received additional information regarding the complaint and is continuing our investigation. In light of the additional information, we request a response regarding the CEMEX Plant operation on this property so the Director can determine whether further action under the Boulder County Land Use Code is required.

Please provide Boulder County Community Planning and Permitting documentation of air emissions, annual kiln feed rates, and clinker production amounts from the 5314 Ute Highway Plant for the time period of 1996 through 2007. Provide details regarding how the air emissions, annual kiln feed rates, and clinker productions amounts during this time period were calculated or measured. Please also provide information regarding any modifications, alterations, or additions to the plant or site, including equipment made during this time period.

Please respond within 30 days of receipt of this letter.

Please also feel free to reach out to me directly at 303-441-4614 or mlaws@bouldercounty.gov

Sincerely,

Martin H. Laws, AICP
Division Manager
Code Compliance and Public Information Team
Community Planning and Permitting

Claire Levy County Commissioner Marta Loachamin County Commissioner Ashley Stolzmann County Commissioner

Attachment 1
Annual Air Emissions, Kiln Feed Rates and Clinker Production – 1996 – 2007

YEAR	ANNUAL		ANNUAL EMISSIONS*						
	Kiln Feed - Tons	Clinker - Tons	Kiln NOx Tons	Kiln SO ₂ Tons	Kiln CO Tons	Kiln VOC Tons	Plant Total	Plant PY1 Total	Plant PY10 Total
1996	755,989	430,272	1,885	200	82	133	379		225
1997	789,095	458,694	1,714	267	101	131	398		235
1998	817,634	501,008	1,520	123	157	142	439		265
1999	845,049	500,031	1,987	45	191	45	437		226
2000	846,129	541,747	2,140	10	139	4	173		102
2001	759,699	508,733	2,364	24	296	5	167		97
2002	738,067	472,945	2,180	119	297	8	156		91
2003	830,428	516,251	2,336	62	271	3	174		102
2004	791,866	472,053	2,127	33	264	8	171		100
2005	739,260	440,384	1,945	34	198	4	158		93
2006	734,456	466,173	1,945	34	198	4	137		84
2007	788,780	479,225	1,683	65	311	5	221		148

* The CEMs calculations made in the 2000-2007 period were not corrected for stack moisture. As a result, the kiln CEMs data (NO_x, SO₂, CO) data overstates emissions by roughly 18%.

Attachment 2
Modifications, Alterations or Additions

Finish Mill High Efficiency Separator upgrade

Backup Finish Mill pump installed

Kiln process efficiency upgrades

Kiln and Clinker Cooler process upgrades

Raw Mill process upgrades

Kiln and Dryer gear replacement

Spray Tower equipment upgraded

Alleviator Vent Dust Collector installed

Clinker Handling Dust Control upgrades

West Truck Scale replacement